

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARIA CHANEL PAYNE,

Petitioner

VS.

LEDARREN DEMARIO HOLDEN,

Respondent

) Case Number: FMS-24-387501

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 9AM on 8/11/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TODD GEORGOPAPADAKOS,

Petitioner

VS.

TANYA GEORGOPAPADAKOS,

Respondent

) Case Number: FDI-22-796813

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: BIFURCATION OF MARITAL STATUS (FAMILY CODE 2237);
REQUEST FOR ORDER: CHANGE OF SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES
AND COSTS, PROPERTY CONTROL, ENFORCEMENT OF STATEMENT OF DECISION; FAMILY
CODE 1101/2122 REMEDIES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Todd Georgopapadakos (Husband) and Respondent Tanya Georgopapadakos (Wife)
married on 6/9/1996. The parties have one adult daughter. Their son passed away from cancer in
2018 at age 15.
- 2) Per the Findings and Order filed 8/10/2023, the Court awarded \$1,647 per month in temporary
guideline spousal support (which was based on an imputation of \$2,600 per month of fulltime
minimum wage income to Wife).
- 3) On 3/26/2025, following a three-afternoon long-cause hearing which occurred on 1/28/2025,
1/30/2025, 2/6/2025, the Honorable Judge Costin issued a Final Statement of Decision regarding
Breach of Fiduciary Duty; Division of Property; Permanent Spousal Support; and Husband's

1 Request for Family Code section 271 attorney's fees sanctions. The Final Statement of Decision
2 provides in relevant part:

- 3 a. "The present order for temporary spousal support (\$1,647 per month) shall remain in
4 effect until after the parties' marital status is terminated."
- 5 b. "After Judgment terminating status is entered, the Court sets long term support at
6 \$1,500.00 per month. This amount is, of course, in addition to the asset distributions from
7 the solar businesses..." Judge Costin made this permanent spousal support award after
8 considering the Family Code section 4320 factors, including that Wife historically had a
9 successful business selling sculptures, she has not been employed since the date of
10 separation, Wife testified she could earn \$60,000 annually "with effort," Wife lives in her
11 father's basement and Wife performs work for her father in exchange for room and
12 board, and Wife suffers from abdominal migraines.
- 13 c. Judge Costin's Statement of Decision mentions five businesses, Green Island LLC
14 (GIFT), Hawaii PV Partners LLC (PVP), SafeConnect, Distributed Energy Partners LLC
15 (DEP), Dep Fit Energy LLC (DEP FIT), and Black Sands Publishing/Chromaco. The
16 Court made the following findings regarding each of the business.
- 17 d. For GIFT and PVP, Judge Costin found that Husband was expelled from these businesses
18 at least in part due to Wife's threatening communications with partners of those
19 businesses and that Wife's conduct constituted a breach of fiduciary duty to the
20 community. Judge Costin stated that if Husband is not reinstated to GIFT and PVP and
21 instead "receives only a buyout value," Husband would be entitled to 60% of any funds
22 received from the buyout and Wife would receive 40% of any funds received from the
23 buyout and this allocation is a remedy for Wife's breach of fiduciary to the community.
24 If, however, Husband is reinstated to GIFT and PVP (or if they elect that Husband retain
25 his full economic interest in the company), then each party is entitled to receive 50% of
26 payments from those businesses.
- 27 e. Judge Costin awarded Husband 100% of SafeConnect as a remedy and sanction for
28 Wife's breach of fiduciary duty.

- 1 f. Judge Costin found that Wife should be awarded 50% of the community property share
2 of DEP and DEP FIT from the date of separation, including 50% of all distributions not
3 used to cover taxes related to DEP and DEP FIT.
- 4 g. Judge Costin found that Wife does not have any business ownership interests nor
5 business partnership interests in any of the solar businesses and she is not legally entitled
6 to operate or manage those businesses
- 7 h. Judge Costin stated she was not provided with sufficient information to value the parties'
8 interest (if any) in Black Sands Publishing / Chromaco.
- 9 i. Husband was awarded \$50,000 in Family Code section 271 attorney's fees sanctions, to
10 be paid by Wife at a rate of \$500 per month as a deduction from Wife's monthly spousal
11 support.
- 12 j. Judge Costin stated, "The Court notes it was not tasked at this long cause evidentiary
13 hearing with valuation or division of the entirety of the parties' other assets and debts...
14 The parties still need to reach agreement or schedule an additional trial for the Court to
15 adjudicate any remaining issues."
- 16 4) The Court notes that the Income and Expense Declaration filed by Husband prior to the trial
17 before Judge Costin includes the following income information for Husband: \$1,042 in average
18 monthly salary or wages, \$1,632 per month in businesses distributions, and \$9,950 per month in
19 average monthly self-employment income from his consulting businesses (but the month prior
20 Husband earned \$14,500 in self-employment income).
- 21 5) On 2/19/2026, the Honorable Judge Mori entered a Judgment which incorporated Judge Costin's
22 Final Statement of Decision, with a reservation of the Court's jurisdiction "over all issues not
23 addressed in the Final Statement of Decision."
- 24 6) Neither Judge Costin's Statement of Decision, nor the Judgment terminate the parties' marital
25 status.
- 26 7) On 4/15/2026, Wife's Request for Order filed 4/15/2026 seeking the following orders:
27 a. Set temporary spousal support of \$7,181 per month, based on Husband's total income
28 from all sources ("at minimum \$25,647/month per his own bank declaration") until the
29 property division is complete.

- b. Remove the \$5,000/month earning capacity imputation to Wife. Wife states her present circumstances make the imputation untenable, writing, “I was the primary caregiver for our terminally ill son Xander until his death. I am still grieving. In June 2025, I suffered a stroke and am under active neurology care... I am on Medicaid and SNAP. I cannot afford rent in Honolulu or San Francisco.”
- c. Address the \$500/month FC § 271 sanction offset.
- d. Order Husband to pay Wife’s share of all distributions from GIFT, HPVP, DEP, DEP FIT Energy, DEP/APB JV, and all related entities retroactive to March 26, 2025.
- e. Order Husband to file an Income and Expense Declaration with Bank Statements.
- f. Order Husband to file a complete Income and Expense Declaration with all supporting documents within 15 days.
- g. Neutral CPA + Records. Order all K-1s, tax returns, bank statements, and distribution records for 2021–2025 produced to a neutral CPA within 30 days.
- h. Order Husband and all entities he controls to cease new capital investments or reinvestments using community funds without prior court approval.
- i. Set a hearing on valuation of all community business interests.
- j. Set aside both FL-144s under FC § 2122 (duress, fraud, perjury, failure to disclose).
- k. Deny request to protect business partners from civil lawsuits.
- l. Order Husband to pay fees under FC §§ 2030, 2032, and sanctions under FC § 271.
- m. Order the in-kind transfer of the Waianae solar farm including all land, buildings, solar equipment, and HECO FIT contracts.
- n. Calendar for full evidentiary hearing. Award 50% penalty (FC § 1101(g)) or 100% (FC § 1101(h)) on all fraudulently concealed assets.
- o. Retain jurisdiction until Husband has fully complied with the SOD and every order of this Court.
- p. Other and further relief as the Court may deem just and proper.
- 8) On 4/17/2026, Wife filed a Memorandum of Points and Authorities.
- 9) On 6/1/2026 and 6/5/2026, Husband filed duplicate Responsive Declarations asking the Court to deny all of Wife’s requests. Husband states, “As set forth in Petitioner’s Reply Declaration, every

1 issue Respondent raises was adjudicated at the trial before Judge Anne Costin, addressed in the
2 Final Statement of Decision filed March 26, 2025, or resolved by the Judgment (FL-180) that
3 Respondent voluntarily signed on October 20, 2025. Respondent presents no new facts
4 warranting modification or reconsideration.” Husband is referring to his Reply Declaration filed
5 on 6/5/2026 for his Request for Order filed 4/10/2026 (which was adjudicated on 6/9/2026). The
6 Court notes there is no Judgment signed by Wife on 10/20/2025 attached to his Reply Declaration
7 filed 6/5/2026 or his Request for Order filed 4/10/2026.

8 10) On 6/9/2026 (per the Findings and Order After Hearing filed 6/11/2026), Judge Chan denied
9 Husband’s Request for Order filed 4/10/2026 wherein Husband asked the Court to terminate the
10 parties’ marital status and confirm all issues had been resolved. Judge Chan found that final
11 orders regarding the entirety of the parties’ community estate have not yet been made and denied
12 Husband’s requests without prejudice to the Court’s ability to adjudicate this request at trial.

13 11) On 6/9/2026, Husband filed a pleading entitled Notice of Motion and Motion for Reconsideration
14 of Order Dated July 9, 2026, but did not file a Request for Order (FL-300).

15 12) The prior 6/16/2026 hearing on Wife’s 4/15/2026 Request for Order was continued to 7/21/2026
16 by Visiting Judge Cindee Mayfield on the Court’s own motion.

17 13) On 6/26/2026, Husband filed a Supplemental Declaration clarifying that Wife did not sign a
18 Judgment on 10/20/2025. Rather, “What Respondent signed on October 20, 2025, was the FL-
19 144...In addition to signing the FL-144, Respondent sent an email on October 20, 2025
20 confirming her agreement to the entire Judgment package.”

21 14) On 7/9/2026, Wife filed a Declaration stating she suffered a stroke in June 2025 and that the
22 imputation of income to her is no longer tenable. Wife requests the following relief: order an in-
23 kind distribution of a 7.57-acre solar farm (including its FIT contracts and equipment) as her
24 share of the community property and, if the Court declines to order the transfer, appoint a
25 receiver, award \$7,181 per month in spousal support, and order the receiver to distribute all
26 withheld community distributions, including allegedly undisclosed assets. Wife argues Husband
27 has failed to comply with the Statement of Decision by omitting a valuable company (Distributed
28 Energy Partners LLC), filing a Final Declaration of Disclosure stating all issues were resolved
29 despite her objection, and refusing to transfer property as ordered. Wife states Husband has

1 presented inconsistent valuations of the community business interests to different audiences,
2 making his valuations unreliable and demonstrating that the only effective remedy is a court-
3 ordered in-kind transfer of property.

4 15) On 7/17/2026, Husband filed a Declaration stating Wife's declaration is an untimely opposition
5 under Code of Civil Procedure section 1005(b). Husband also states that every issue Wife raises
6 has already been adjudicated. Husband writes, "Petitioner contends that he has fully complied
7 with the Judgment and Statement of Decision with respect to the three remaining community
8 assets—DEP, Hawaii PV Partners, and Green Island FIT. He states that each asset is subject to an
9 executed buyout agreement establishing a payment schedule, copies of which have been provided
10 to both Respondent and the Court, and that all required payments have been made on time, in
11 most instances well within the 30-day period prescribed by the Judgment. Petitioner argues that
12 neither the Judgment nor the Statement of Decision requires any transfer of ownership interests
13 beyond the agreed-upon buyout payments, that the DEP loan is being repaid according to
14 schedule, and that there are no undisclosed assets. Petitioner further argues that Respondent's
15 claim he is in breach of the Statement of Decision by failing to transfer ownership interests
16 fundamentally mischaracterizes the Court's ruling, which provided that Respondent would receive
17 her share through buyout payments rather than direct ownership. Petitioner also disputes
18 Respondent's assertion that she was induced into signing the FL-144 and judgment package
19 through false promises, arguing that Respondent voluntarily signed the documents after asking
20 questions about the assets, discussing the matter with both Petitioner and the parties' daughter,
21 and receiving answers to her questions. Petitioner maintains that no promises or conditions were
22 made beyond the terms contained in the signed documents and that Respondent has presented no
23 evidence, other than her own assertions, to support her claim that her agreement was induced by
24 any promise or misrepresentation."

25 16) At the prior 7/21/2026 hearing, the Court stated it would hear property issues at a future trial and
26 continued the hearing to 8/11/2026 on Wife's request to modify spousal support. The Court also
27 ordered the parties to file updated Income and Expense Declarations.

28 17) On 7/28/2026, Wife filed an Income and Expense Declaration. Wife states she receives \$1,000
29 per month in spousal support in addition to "irregular" community property distributions (Wife

1 states she received \$5,104.16 in community property distributions last month). Wife estimates her
2 monthly expenses total \$5,791 which includes \$2,100 per month for rent. Attached to Wife's
3 Income and Expense Declaration is a statement by Wife wherein Wife states she is not asking the
4 Court to relitigate or modify the Statement of Decision; she is asking the Court to enforce it (yet
5 Wife also requests guideline temporary spousal support which Wife states should be \$7,181 per
6 month based on Husband's alleged income). Wife states distributions from the community
7 businesses are erratic and unpredictable, are not supported by documentation, and sometimes
8 Husband unilaterally deducts funds from Wife's share of the distributions. Wife states she cannot
9 obtain housing because a landlord requires proof of consistent income. Wife also states that she
10 suffered a stroke in May 2026 (the Court notes Wife states she suffered a stroke in her previously
11 filed pleadings in June 2025). Wife states she is in weekly physical therapy for stroke
12 rehabilitation through at least 9/18/2026 and her SSDI application is pending federal
13 determination. Wife states she cannot work. Wife also requests that the Court order Husband to
14 produce his current K-1 schedules for all community entities, six months of DEP LLC bank
15 statements showing all distributions and payments to or on behalf of Husband, six months of
16 Husband's personal bank statements, and a written distribution schedule so that Wife can obtain
17 housing. Wife attached a summary of her doctor visit on 7/17/2026 which includes a statement
18 that an "incidental left vertebral artery dissection was identified on June 27, 2025, treated with
19 aspirin for 6 months through January 2026, and remains stable on repeat CTA from May 14,
20 2026... No further imaging or intervention required... Regarding migraines, she reports pain
21 about 5 days per month with a pulling sensation on the left side of the neck associated with light
22 sensitivity and sound sensitivity, without nausea. These episodes have not rolled into a migraine
23 in a while and usually improve if she stops working on the computer, reduces stress, and goes
24 hiking. She has not been taking migraine medications regularly because she is typically able to
25 back off triggers and symptoms subside on their own, but she remains concerned about severe
26 recurrence, especially with travel given a prior prolonged episode after flying..." The Court notes
27 there is no mention in the doctor's not regarding her ability to work or "weekly physical therapy
28 for stroke rehabilitation."
29

1 18) On 7/28/2026, Husband filed an Income and Expense Declaration. Husband reports the following
2 income: \$2,606 per month in average monthly distributions from GIFT, HPVP and DEP, as well
3 as \$14,650 per month in self-employment income for healthcare consulting (Husband states he
4 has been a healthcare consultant since April 2024).

5 19) On 7/28/2026, Husband filed a Responsive Declaration. Husband states Wife has not
6 demonstrated a material change in circumstances. Husband states Wife failed to attach
7 exculpatory evidence, including a summary of a medical appointment attended by Wife on
8 7/28/2025 wherein Wife's doctor stated that the vertebral artery finding was likely an old injury
9 from prior neck trauma and not a new cerebrovascular event. Husband also states that between
10 April 2025 and April 2026, Wife received \$48,934.16 in distributions from the community
11 businesses, in addition to \$12,000 in court-ordered spousal support, and these payments average
12 out to approximately \$5,000 per month. Husband also states that in the last two years before
13 separation, Wife earned approximately \$50,000 per year working part time. Husband states Wife
14 is claiming she cannot obtain employment based on a medical condition her doctors say does not
15 exist. Husband requests additional sanctions under Family Code section 271 for Wife's bringing
16 an unsupported request. Husband provides the following additional information and attached
17 exhibits to support his statements:

- 18 a. "Hawaii PV Partners (HPVP): HPVP has paid \$102,653 to date, with \$282,346.79
19 remaining. Respondent receives 40% of all payments. HPVP pays approximately 6% of
20 net profit annually; the most recent distribution exceeded the required amount."
- 21 b. "Green Island FIT LLC (GIFT): Petitioner negotiated a buyout settlement of \$1,471,787,
22 significantly above the fair market value of approximately \$1,000,000 established at trial.
23 \$25,000 has already been received. Petitioner expects a minimum of \$25,000 more before
24 year-end. The main project leases finish repaying this year, which will increase free cash
25 flow and accelerate payments. The full amount is expected to be paid within five years.
26 \$200,000 of the settlement is held in reserve against costs arising from Respondent's
27 continued threats of legal action against the GIFT members. Respondent refuses to sign a
28 release that would remove this reserve and accelerate payment to both parties. If
29

Respondent does not sign the release, the reserve will delay full payment by an additional three years.”

- c. “DEP FIT Energy LLC: DEP owns a 49% interest in a \$2,577,198.18 loan receivable from Green Island FIT LLC, plus two small solar farms. Petitioner's 40% share of DEP makes the parties' combined interest \$505,130.84, plus interest. Petitioner negotiated a revised loan agreement at 3.72% interest with fully amortizing payments beginning January 2027, plus quarterly disbursements of all cash received in excess of a \$5,000 operating buffer. The Q2 2026 payment was \$10,208.32. Respondent receives 50% of all DEP payments. Q3 and Q4 payments are expected to be the same or larger, and Q1 2027 and beyond payments are expected to increase significantly as the GIFT loan begins fully amortizing. Petitioner handles all payments by sending Respondent a photograph of the check received along with a calculation of her share, and promptly remits her portion via Zelle or wire — well in advance of the 30-day requirement in the Judgment.”
- d. “Aina Haina Property (Hawaii): The parties hold a small minority interest due to an investment in real property in Aina Haina, Hawaii. The property sale has been approved by the Honolulu City Council for \$7,000,000, subject to appraisal, and is expected to close by December 2026. The parties' share will yield approximately \$200,000–\$300,000. Respondent is entitled to 50%.”
- e. “Black Sand Publishing / Chromaco: This asset was specifically reserved in Section C of the Final Statement of Decision filed March 26, 2025. Black Sand Publishing was shut down at a loss. Both Petitioner and the other owner, Larry McCarthy, offered to transfer full ownership of the company to Respondent free and clear, with no impact on other assets. Respondent declined. Mr. McCarthy subsequently sold the remaining assets at a loss and closed the business. A complete accounting was provided to Respondent in April 2024. Petitioner received no money from the shutdown—and in fact received no money at all from Black Sand for approximately nine to ten years, nor held any operational or management role during that time. The closure may result in negative tax implications from the loss, which Petitioner is willing to absorb entirely even though they should rightfully be shared.”

1 f. “No Other Unresolved Assets: The small real estate interest in Aina Haina and Black
2 Sand were the only issues not resolved at trial. There are no other community property
3 assets or issues to resolve. This is the entirety of the community estate. Respondent's own
4 filings raise no other issues. She continues to attempt to relitigate the Judgment.”

5 g. “In sum, Respondent is about to receive well in excess of \$1,000,000 in asset payments
6 over the next five years — or eight years if Respondent does not sign the release — as
7 well as quarterly DEP distributions (the next payment is expected in early October 2026),
8 ongoing GIFT and HPVP buyout payments, plus the Aina Haina proceeds of \$100,000–
9 \$150,000 (her 50%) before December 2026. This does not include the spousal support
10 she continues to receive. Respondent's financial position does not constitute an
11 emergency warranting modification of the support set at trial.”

12 20) On 7/21/2026, Husband filed a Request for Order seeking to bifurcate and terminate the parties’
13 marital status. The hearing on Husband’s 7/21/2026 Request for Order is also set for
14 8/11/2026. Husband states, “Neither party currently receives health insurance through the other.
15 Both parties have maintained their own separate health insurance since June 2024, when
16 Petitioner was expelled from the Hawaii PV Partners... Bifurcation will therefore not affect either
17 party's health insurance coverage... Neither party has pension, retirement, or deferred
18 compensation benefits other than Social Security, the rights to which are governed by federal law
19 and are not affected by the timing of a state court judgment of dissolution... Bifurcation serves
20 the interests of justice. If the Court determines that any financial issues require further
21 adjudication—whether raised by Respondent's pending Request for Order under Family Code
22 section 2122 or otherwise—those issues can and should be resolved separately from marital
23 status. There is no reason for the parties to remain legally married while financial disputes are
24 litigated.”

25 21) Per the Proof of Service filed 7/21/2026, Husband’s Request for Order was emailed to Wife on
26 7/21/2026.

27 22) Wife did not file a Responsive Declaration to Husband’s 7/21/2026 request to bifurcate and
28 terminate marital status.
29

1 **B. Findings and Order**

- 2 1) The Court will not consider the statements of Dr. Michael Duick quoted by Husband in his
3 7/28/2026 Responsive Declaration nor the declaration Husband filed on Mr. Duick's behalf on
4 7/28/2026, as those statements are hearsay.
- 5 2) The medical records submitted by the parties do not reflect a diagnosis that Wife suffered a stroke
6 in June 2025 or May 2026. The medical records also do not reflect any recommendation by a
7 medical professional that Wife is unable to work. The Court does not find that a material change
8 in circumstance has occurred warranting modification of the support orders set forth in Judge
9 Costin's 3/26/2025 Statement of Decision, and Wife's request to modify the current support
10 orders is denied.
- 11 3) Husband's request for additional Family Code section 271 attorney's fees sanctions is denied.
- 12 4) Husband's 7/21/2026 Request for Order to bifurcate and terminate marital status was not served
13 at least 16 Court days prior to the 8/11/2026 hearing as required under Code of Civil Procedure
14 section 1005(b). To provide additional time to Wife to file a Responsive Declaration, the hearing
15 on Husband's request to bifurcate and terminate marital status is hereby continued to **Tuesday,**
16 **10/13/2026 at 9:00 AM in Dept. 404.** By the deadlines set forth in the Code of Civil Procedure,
17 Wife may file a Responsive Declaration to Husband's request and Husband may file a Reply
18 Declaration.
- 19 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JACQUELINE MARGUERITE R B PALLAS,

Petitioner

VS.

DERRICK LYNDON PALLAS,

Respondent

) Case Number: FDI-22-797295

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jacqueline Pallas (Mother) and Respondent Derrick Pallas (Father). The parties married on 2/19/2011. The parties disagree as to their exact date of separation but agree they were married for at least 11 years and 9 months. The parties have two minor children, Samuel (DOB: 3/11/2014, age 12) and Joseph (DOB: 9/18/2021, age 4). Mother is represented by attorney Michelle Harris. Father is represented by attorney Gary Dubrovsky.
- 2) On 11/7/2025, Mother filed a Request for Order asking the Court to order Father to return to the workforce and seek work commensurate with his earning ability and historical income.
- 3) On 2/18/2026, a Stipulation and Order was filed which appoints Soma McCandless as an Evidence Code section 730 vocational evaluator to perform a vocational evaluation of Father.
- 4) At the prior 3/12/2026 hearing, the Court set a future hearing date of 6/25/2026 to “determine whether a Seek Work order remains necessary and, if so, the appropriate scope and parameters.”
- 5) On 6/9/2026, a Stipulation and Order was filed wherein the parties agreed to continue the 6/25/2026 hearing date to 8/11/2026.

- 1 6) On 8/3/2026, Father's attorney filed a Declaration stating that Ms. McCandless is aiming to
2 deliver her report by the end of September "at the latest." Father's attorney asks the Court to
3 continue the 8/11/2026 hearing no earlier than 10/22/2026 so that the parties can review Ms.
4 McCandless' report and submit appropriate briefing.
- 5 7) On 8/4/2026, Mother filed an Update Declaration. Mother agrees that Ms. McCandless has stated
6 that she will not complete her report until the end of September "at the latest." Mother states that
7 the Court should not delay ordering Father to seek work pending completion of Ms. McCandless'
8 report. Mother also states that Father has not been fully cooperative with Ms. McCandless (but
9 she does not provide details regarding this claim) and asks the Court to reserve jurisdiction over
10 sanctions.
- 11 8) On 8/5/2026, Father's attorney filed a Supplemental Declaration wherein he refutes Mother's
12 claim that he has not been fully cooperative with Ms. McCandless. Father's attorney attaches an
13 email from Ms. McCandless' business manager who states: "Mr. Pallas has been cooperative
14 throughout the evaluation process. He has completed all tasks we have requested within the
15 timeframes we provided." Father asks the Court to deny Mother's request for a reservation of
16 jurisdiction on sanctions.

17 **B. Findings and Order**

- 18 1) The Court hereby continues the 8/11/2026 hearing to **Thursday, 11/12/2026 at 9:00 AM in**
19 **Dept. 404.**
- 20 2) At least 20 calendar days prior to the next hearing date, Mother shall file and serve a declaration
21 (not to exceed 5 pages in length, not including exhibits) outlining her position regarding these
22 issues. Mother shall attach to her declaration the vocational evaluation of Ms. McCandless.
- 23 3) At least 10 calendar days prior to the next hearing date, Father shall file and serve a declaration
24 (not to exceed 5 pages in length, not including exhibits) outlining his position regarding these
25 issues.
- 26 4) Father's attorney shall prepare the Findings and Order After Hearing.
- 27 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
28 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
29 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DORA LUZ MACIAS SANCHEZ,

Petitioner

VS.

ADAN MIGUEL VELAZQUEZ BLAS,

Respondent

) Case Number: FDI-24-800170

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT, ATTORNEY
FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Dora Macias Sanchez (Wife) and Respondent Adan Velazquez Blas (Husband). The parties married on 9/30/2000. The parties agree they separated in December 2023, for a marriage of 23 years and 2 months. The parties have no minor children in common (their child Gabriel turned 18 on 10/6/2025). No Judgment has been entered in this case to date. Both parties are currently self-represented.
- 2) Per the Findings and Order After Hearing filed 12/20/2024, at the prior 12/17/2024 hearing, Judge Costin ordered Husband to pay Wife \$1,361 per month in temporary spousal support effective 1/1/2025 (based on Husband's statement that he earns \$7,366 per month as the CEO of a construction company and Wife's statement that she earns \$1,776 per month as a home health aide).
- 3) Per the Findings and Order After Hearing filed 3/21/2025, at the prior 3/20/2025 long-cause hearing, then Commissioner Luna maintained Judge Costin's order requiring Husband to pay

1 Wife \$1,361 per month in temporary spousal support and also ordered Husband to pay Wife
2 \$1,365 per month in child support. Commissioner Luna also denied Husband's request to impute
3 minimum wage to Wife. Commissioner Luna further ordered Husband to pay Wife \$5,500 in
4 need-based attorney's fees.

5 4) Per the Findings and Order After Hearing filed 8/26/2025, at the prior 8/21/2025 hearing, Judge
6 Costin adjudicated Husband's Request for Order filed 5/27/2025 asking the Court to modify the
7 current support orders based on his statements that he is on disability and not physically able to
8 work. Husband stated that he had been paying support from his savings which had been depleted.
9 The Court modified the child and spousal support orders and ordered Husband to pay Wife \$656
10 per month in guideline child support and \$176 per month in guideline spousal support, for a total
11 of \$832 per month (based on an imputation of \$3,323 in full-time minimum wage income to
12 Husband and a finding that Wife earns average monthly income of \$1,800).

13 5) On 9/12/2025, Husband filed a document entitled "Preliminary Declaration of Disclosure."
14 Husband included as an attachment an Income and Expense Declaration dated 9/2/2025 which
15 states that Husband is unemployed. Husband listed Wells Fargo business and personal checking
16 accounts with a balance of \$27,000 and \$100,000 in a Robin Hood account.

17 6) On 12/11/2025, Wife filed the instant Request for Order. Wife states Husband refuses to provide
18 her with current bank statements. Wife states Judge Costin admonished Husband in September
19 2024 that Mexico had no jurisdiction over the divorce, yet Husband continued with the divorce
20 proceeding in Mexico and received a final judgment in October 2024. Wife states Husband
21 claims he no longer needs to provide material updates regarding his finances to Wife for this
22 reason. Wife attached a declaration by her older adult son Arturo Macias dated 9/19/2025 who
23 states he saw Husband directing two of his employees to load a truck with construction debris on
24 9/7/2025. Arturo also states that "on a later date," he encountered Husband at a restaurant and
25 Husband told him that if he testified against him, they would "end up bad" which Arturo states he
26 understood as a threat. Wife attached a photograph which shows a "no stopping" posting for the
27 dates 10/15/2025 – 1/15/2026 which bears an address on Guerrero Street and which also states,
28 "Future General Construction Inc. (415) 373 – 8527." Wife further attached a document from the
29 IRS dated 10/14/2025 which states, "The payee information you reported on Form 1099 for tax

1 year 2024 may be incorrect.” Wife states this document shows that Husband was paying his
2 employees and reporting those payments to the IRS. Wife asks the Court to:

- 3 a. Order Husband to file and serve a current, complete, and accurate Income and Expense
4 Declaration.
 - 5 b. Order Husband to provide all current bank statements, investment account statements,
6 credit card statements, and business records, including but not limited to records of
7 Future General Construction.
 - 8 c. Order monetary sanctions against Husband for failure to comply with disclosure
9 requirements, including attorney’s fees and costs incurred by Wife.
 - 10 d. Order Husband to pay attorney’s fees for increased litigation caused by his misconduct
11 under Family Code sections 2030 – 2032 and 271.
 - 12 e. Order Husband to produce all contracts, agreements, and related documents for the
13 construction project associated with the city permit issued to Future General
14 Construction, including contracts with property owners, subcontractors, or clients.
 - 15 f. Draw an adverse inference that Husband has been working and earning income during
16 the period he claimed unemployment, based on evidence of construction work, city-
17 issued permits, and business activity.
 - 18 g. Impute income to Husband consistent with his earning capacity and prior unemployment
19 income.
 - 20 h. Reinstate or modify child and spousal support to reflect Husband’s actual income or
21 earning capacity.
 - 22 i. Order Husband not to transfer, hide, or dissipate assets until property disclosure is
23 provided.
 - 24 j. Order Husband not to close or move accounts without notice to Wife.
- 25 7) Wife’s 12/11/2025 Request for Order was first set for hearing on 1/16/2026 before Judge Gold.
26 At that hearing, both parties appeared in pro per. Per the Findings and Order After Hearing filed
27 1/28/2026, Judge Gold denied Wife’s request for discovery because Wife “did not submit the
28 required documents for the discovery motion.” Judge Gold also continued the hearing on Wife’s
29 requests for support and attorney’s fees to 3/17/2026 in Dept. 404.

1 8) At the 3/17/2026 hearing, the Court ordered the parties to appear in order for the Court to hear
2 additional argument from the parties. At the time the case was called, Husband was present, but
3 Wife was not. The Court continued the hearing to 4/9/2026 because it believed Wife had
4 appeared on Zoom at some point that morning and because a Spanish interpreter was not
5 available to translate for Husband.

6 9) On 3/30/2026, Husband filed a Responsive Declaration. Husband states he previously provided
7 bank and financial records for 2024 and 2025, including records through October and November
8 2025, and that Wife is seeking duplicative information. Husband states that the construction
9 project referenced by Wife was permitted in October 2025, work began in early November 2025,
10 and the project is being performed by licensed subcontractors. Husband states that no net income
11 has yet been realized and any funds received have been used to pay subcontractors and materials.
12 Husband states his anticipated compensation is approximately 10% and has not yet been received.
13 Husband states that their son Gabriel turned 18 on 10/6/2025 and he requested documentation
14 verifying that Gabriel is still enrolled and attending high school, but no documentation has been
15 provided. Husband states that in January 2026 he visited Downtown High School and was told
16 that Gabriel was completing the remainder of his coursework online, had accumulated 90 work
17 hours during that semester, and was expected to finish his coursework in February 2026. Husband
18 states that because Gabriel has not been a full-time high school student, he is not obligated to
19 continue to pay child support for Gabriel. Husband further asks the Court to strike or disregard
20 Exhibit F of Wife's Request for Order which consist of an IRS notice which was addressed to
21 Husband's business entity and was opened and submitted without his authorization. Husband
22 attached to his declaration: an Income and Expense Declaration stating that he is currently
23 earning \$0, a contract for Future General Construction dated October 2025, various subcontractor
24 agreements, bank statements for October – November 2025, various medical records for himself,
25 an English translation of a divorce certificate from Mexico (which Husband represents granted a
26 divorce of the parties on 12/13/2024, but does not address any support or property issue), and a
27 letter dated 1/22/2026 from Downtown High School which states: "Gabriel Vazquez... is taking
28 an online course with us and is halfway through. He should be done in February. Also he is
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1 submitting 90 work hours this semester and then he will be officially done. Gabriel will have a
2 ceremony in June.”

3 10) There is no Proof of Service on file for Husband’s 3/30/2026 Responsive Declaration.

4 11) At the 4/9/2026 hearing, Wife appeared but Husband did not. The Court continued the matter to
5 6/2/2026. The Court also ordered Husband to file a Proof of Service confirming that his
6 Responsive Declaration was served on Wife.

7 12) On 5/22/2026, Wife filed a Declaration which Wife states is “in response to Respondent’s
8 declaration.” Wife provided records which Wife states show the following projects and permits
9 associated with Husband: 2134 Lincoln Way, San Francisco — Application No. 202405142072,
10 permit triage date May 14, 2024, final inspection/completion July 15, 2024; 3562 Sacramento
11 Street, San Francisco — Application No. 202504245119, permit date April 24, 2025, stated
12 permit price approximately \$20,000, and records showing the project reached completion/final
13 stage around November 21, 2025; 4490 Mission Street, San Francisco — Application No.
14 202604300436, permit date April 30, 2026, final inspection/completion May 19, 2026; and
15 additional projects appearing in public records include 1675 Eddy Street, 651 37th Avenue, 332
16 Fell Street, and additional construction-related projects during 2023, 2024, 2025, and 2026. Wife
17 states that Husband stopped paying child and spousal support after October 2025. Wife
18 acknowledges that Gabriel turned 18 on 10/6/2025, but states that support can continue for a child
19 who is a full-time high school student. Wife states that Husband should not be permitted to
20 selectively use school-related information solely for purposes of avoiding support obligations.

21 Wife asks the Court to:

- 22 a. Order Husband to provide documentary proof of his claims that the construction project
23 referenced by Wife was performed by subcontractors and that funds received were paid
24 for subcontractors and materials and that his compensation from the project was expected
25 to be only 10%
 - 26 b. Order Husband to disclose all personal and business accounts, including any accounts
27 connected to Zelle, Venmo, Cash App, Apple Pay, PayPal, or similar payment
28 applications
- 29

- c. Order Husband to provide current, complete medical records to support his claims that he cannot perform physical labor due to medical conditions
- d. Order Husband to provide complete records relating to any Uber, Lyft, or other rideshare or delivery platform accounts operated by Husband because Husband previously represented that he purchased a vehicle so he could work for Uber
- e. Order Husband to provide copies of his complete passport records showing repeated travel between the United States and Mexico
- f. Deny Husband's request to strike the IRS notice which she states supports her need for further disclosure and investigation regarding Husband's business and potential reporting issues involving payments. Wife states the IRS notice was not improperly obtained as it was received at her home address.
- g. Disregard any documents or proceedings from Mexico as Husband did not provide properly authenticated records, certified translations, and competent evidence establishing their reliability. Wife also argues this case is pending in California, both parties reside in the United States, and support obligations should be determined under California law and based on reliable evidence.
- h. Maintain or reinstate appropriate child and spousal support orders
- i. Order payment of arrears and any unpaid support obligations

13) There is no Proof of Service on file for Wife's 5/22/2026 Declaration.

14) At the prior 6/2/2026 hearing, the Court made the following orders (in addition to other orders outlined in the Findings and Order After Hearing filed 6/26/2026):

- a. Wife's request that the Court order Husband to provide documentation regarding his business activities, earnings, financial holdings, medical condition, and travel is denied. If there is additional information that Wife seeks, she may conduct discovery.
- b. Regarding Wife's request to increase child and temporary spousal support based on purported additional earnings by Husband, the Court finds that the limited evidence that Wife has presented to date does not clearly show that Husband is earning more than the amount the Court previously imputed to Husband (i.e., \$3,323 per month in full-time minimum wage income). Wife's request to modify the income attributed to Husband for

1 purposes of calculating child or temporary spousal support is therefore denied. As stated
2 above, Wife may conduct discovery. If she discovers additional admissible evidence that
3 supports her claims, she may file a new Request for Order.

4 c. The termination of child support (due to Gabriel's graduation from high school on
5 6/1/2026) warrants a modification of temporary spousal support. Effective 6/1/2026, in
6 accordance with the XSpouse attached hereto and incorporated herein (which uses the
7 same inputs for the parties' incomes used in the XSpouse attached to the Findings and
8 Order After Hearing filed 8/26/2025), Husband is ordered to pay Wife \$306 per month in
9 temporary guideline spousal support, which Husband shall pay Wife by the 15th of each
10 month.

11 d. A future hearing date is set for Tuesday, 8/11/2026 at 9:00 AM in Dept. 404 on the
12 following limited issues:

13 i. Whether Gabriel was a full-time high school student between the date Gabriel
14 turned 18 (10/6/2025) and the date Gabriel graduated high school (6/1/2026) and
15 whether Wife is entitled to child support for the period 10/6/2025 – 6/1/2026;

16 ii. Whether Wife is entitled to a modification of spousal support between the date
17 she filed her Request for Order (12/11/2025) and the effective date of the spousal
18 support modification set forth above (6/1/2026).

19 iii. Whether Wife is entitled to child and spousal support arrears for unpaid support
20 to date.

21 e. No later than 8/3/2026, the parties shall file and serve any additional documentation the
22 parties wish the Court to review regarding the issues outlined above, including
23 documentation showing: (a) the dates and amounts Husband had paid for child and
24 temporary spousal support to date and whether he owes any arrears and (b) whether
25 Gabriel was a full-time high school student between the date Gabriel turned 18
26 (10/6/2025) and the date Gabriel graduated high school (6/1/2026).

27 15) On 7/23/2026, Husband filed a Request for Order asking the set temporary spousal support at \$0
28 because he had a total hip replacement on 6/23/2026 and has been medically ordered not to work
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for six months. That Request for Order is set to be heard on 9/11/2026. Attached to Husband's Request for Order are documents which appear to show payments to Wife as follows:

- a. \$1,000 on 9/9/2025
- b. \$832 on 9/9/2025
- c. \$832 on 10/7/2025
- d. \$176 on 11/9/2025
- e. \$176 on 12/14/2025
- f. \$176 on 1/15/2026
- g. \$176 on 2/18/2026
- h. \$176 on 3/28/2026
- i. \$176 on 4/30/2026
- j. Three payments of \$176 on 6/22/2026

16) Per the Proof of Service filed 7/24/2026, Husband's Request for Order and related moving papers were mailed to Wife on 7/23/2026.

17) On 7/27/2026, Wife filed a Declaration. Wife's declaration is 14 pages long and contains 112 pages of exhibits. The Court notes Wife's declaration does not contain any information regarding whether Gabriel was a full-time high school student between the date Gabriel turned 18 (10/6/2025) and the date Gabriel graduated high school (6/1/2026). Wife asks the Court to:

- a. Enforce the Court's existing temporary spousal support orders and determine the amount of any unpaid support based upon the evidence presented.
- b. Consider Petitioner's renewed request for attorney's fees based upon the additional documentation now submitted and the applicable provisions of California law.
- c. Permit Petitioner to conduct additional discovery concerning Respondent's financial circumstances, business activities, real property, vehicles, bank accounts, and other assets.
- d. Order Respondent to produce documents relating to international travel, including passport records, passport stamp pages, airline itineraries, boarding passes, travel reservations, entry and exit records, and documents relating to medical treatment relied

upon to explain or justify travel to Mexico, to the extent such documents are within Respondent's possession, custody, or control and are discoverable under applicable law.

e. Order Respondent to provide complete financial disclosures and produce all documents relating to income, assets, liabilities, businesses, real property, vehicles, financial accounts, and any assets located in Mexico or held directly or indirectly for Respondent's benefit, to the extent such documents are within Respondent's possession, custody, or control and are discoverable under applicable law.

f. Grant such other and further relief as the Court deems just and proper under the California Family Code and all other applicable law.

18) There is no Proof of Service on file for Wife's 7/27/2026 declaration.

B. Findings and Order

1) The parties are reminded there are three limited issues set for hearing on 8/11/2026: (a) Whether Gabriel was a full-time high school student between the date Gabriel turned 18 (10/6/2025) and the date Gabriel graduated high school (6/1/2026) and whether Wife is entitled to child support for the period 10/6/2025 – 6/1/2026; (b) Whether Wife is entitled to a modification of spousal support between the date she filed her Request for Order (12/11/2025) and the effective date of the spousal support modification set forth above (6/1/2026); and (c) whether Wife is entitled to child and spousal support arrears for unpaid support to date.

2) Neither party submitted any additional information regarding whether Gabriel was a full-time high school student between the date Gabriel turned 18 (10/6/2025) and the date Gabriel graduated high school (6/1/2026) and whether Wife is entitled to child support for the period 10/6/2025 – 6/1/2026. The Court will therefore not order Husband to pay child support to Wife for the period 10/6/2025 – 6/1/2026 at this time, and the Court reserves jurisdiction to adjudicate this issue.

3) Because the Court is not making a finding regarding whether Wife is entitled to child support for the period 10/6/2025 through 6/1/2026, the Court is likewise not making a finding regarding whether Wife is entitled to a modification of spousal support between the date she filed her Request for Order (12/11/2025) and the effective date of the spousal support modification set forth above (6/1/2026). The Court reserves jurisdiction to adjudicate this issue.

1 4) Per the Findings and Order After Hearing filed 8/26/2025, Judge Costin ordered Husband to pay
2 Wife \$656 per month in guideline child support and \$176 per month in guideline spousal support,
3 for a total of \$832 per month, effective 9/1/2025. The Court finds that Husband made the
4 following payments to Wife between September 2025 and June 2026:

5 a. \$1,000 on 9/9/2025

6 b. \$832 on 9/9/2025

7 c. \$832 on 10/7/2025

8 d. \$176 on 11/9/2025

9 e. \$176 on 12/14/2025

10 f. \$176 on 1/15/2026

11 g. \$176 on 2/18/2026

12 h. \$176 on 3/28/2026

13 i. \$176 on 4/30/2026

14 j. Three payments of \$176 on 6/22/2026 (Husband states these payments were for May
15 2026, June 2026, and July 2026)

16 5) Based on the payments outlined above, the Court does not find Husband owes Wife any spousal
17 support arrears for the period September 2025 through July 2026. As stated above, the Court's
18 jurisdiction over the issues regarding child support owed during the period 10/6/2025 – 6/1/2026
19 is reserved, and so the Court will not make findings at this time regarding whether any child
20 support arrears are due for that period.

21 6) All other requests set forth in Wife's 7/27/2026 declaration are denied without prejudice to a new
22 Request for Order. The Court also notes that Wife does not need the Court's "permission" for her
23 to conduct discovery.

24 7) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SILVIA MICHELLE ALEMAN,	)	Case Number: FDI-25-801091
Petitioner	)	Hearing Date: August 11, 2026
VS.	)	Hearing Time: 9:00 AM
ANDREW REYES,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR HEARING AND APPLICATION TO SET ASIDE SUPPORT ORDER UNDER
FAMILY CODE SECTION 3691

TENTATIVE RULING

The 8/11/2026 hearing on Husband’s request to set aside the prior support order filed 3/20/2026 is hereby continued to **Tuesday, 8/18/2026 at 9:00 AM in Dept. 404** to join the hearing currently set on that date on Husband’s Request for Order filed 6/18/2026 requesting an order authorizing him to sell the 2022 Mercedes-Benz GLB 250.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIGUEL ANGEL HERNANDEZ LOPEZ,

Petitioner

VS.

CAROLINA LOPEZ MURILLO,

Respondent

) Case Number: FDI-25-801503

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER REQUEST TO TRAVEL W/MINOR CHILD

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Miguel Lopez (Father) and Respondent Carolina Murillo (Mother) married on 2/14/2024. The parties agree they separated on 5/1/2025, for a marriage of 1 year and 3 months. The parties have one minor child, Angel (DOB: 10/16/2022, age 3).
- 2) Per the Amended Findings and Order After Hearing filed 9/8/2025, at the 9/3/2025 hearing, Judge Costin denied Mother's request for a Domestic Violence Restraining Order against Father, finding that Mother had not met her burden of proof. The Court ordered the parties to share joint legal and joint physical custody and for the parties to share parenting time on a 2-2-5-5 schedule.
- 3) Now on for hearing is Father's Request for Order filed 7/7/2026 asking the Court for authority to travel with Angel to Oaxaca, Mexico from 11/13/2026 to 12/18/2026. Father states the would like their son to spend time with family and interact with animals and nature. Father states he plans to stay at his house in Santa Catarina Quiane in Oaxaca Mexico. Father states he asked their son's daycare and was told it is OK for them to travel for the period of time. Father states Mother initially agreed to the trip, but changed her mind weeks later.

1 4) Per the Proof of Service filed 8/5/2026, Father's Request for Order, blank Responsive
2 Declaration, and Tentative Ruling Instructions were mailed to Mother on 8/4/2026.

3 5) Mother did not file a Responsive Declaration.

4 **B. Findings and Order**

5 1) Father's 7/7/2026 Request for Order was not served at least 16 Court days prior to the 8/11/2026
6 hearing date, as required by Code of Civil Procedure section 1005(b). Moreover, the parties need
7 to first attend mediation regarding Father's request.

8 2) The parties are ordered to attend mediation with Maya Ponce (with whom the parties have
9 attended a prior mediation session) on **Friday, 10/2/2026 at 9:00 AM.**

10 3) If the parties are unable to reach an agreement regarding Father's request to travel with the
11 parties' son to Mexico, the parties shall return for a hearing on this issue on **Tuesday, 10/13/2026**
12 **at 9:00 AM in Dept. 404.**

13 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

HUEY FONTENOT,

Petitioner

VS.

LEIA DIANNE HARBOUR-FONTENOT,

Respondent

) Case Number: FDI-25-801885

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, PROPERTY CONTROL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Huey Fontenot (Husband) and Respondent Leia Dianne Harbour-Fontenot (Wife) married on 4/14/2021. Husband contends the parties separated on 11/1/2024, for a marriage of 3 years and 6 months. Wife contends the parties separated on 9/18/2024, for a marriage of 3 years and 5 months. The parties have no minor children. Husband is self-represented. Wife will be represented in limited scope by Flicker Kerlin LLP at the 8/11/2026 hearing.
- 2) On for hearing is Husband's Request for Order filed 12/18/2025. Husband asks the Court to (a) award him temporary guideline spousal support and (b) order Wife to pay rent for August – December in the amount of \$11,875. The hearing on Husband's Request for Order has been continued twice due to a lack of Proof of Service.
- 3) On 7/29/2026, Wife filed a Responsive Declaration and Memorandum of Points and Authorities asking the Court to deny Husband's request for Order or in the alternative, order Wife to pay temporary guideline spousal support for a period of three months and credit her with voluntary

1 post-separation financial assistance she provided Husband. Wife states the parties have been
2 separated for approximately one year and 10 months, which is longer than half the length of their
3 marriage. Wife states Husband left his previous employment in the healthcare industry in April
4 2019 (before the parties married) to start his own business. Wife states Husband opened two
5 businesses while they were married and although she had no involvement in the business'
6 management or operation, she became financially responsible for funding business expenses
7 through accounts opened in her name. Wife states Husband's financial position is his own doing.
8 Wife states Husband's second business operated at a loss and business expenses charged to an
9 American Express Business Platinum card in her name ranged approximately \$28,000 to \$35,000
10 per month. Wife states Husband accumulated \$19,304 in charges to the American Express card
11 after separation that Wife ultimately paid. Wife states the parties agreed to file a joint tax return
12 so that she could recover some of the money owes to her from their tax refund, but Wife ended up
13 transferring \$12,148.50 of the tax refund to Husband to assist him with his living expenses. In
14 addition, Wife states she paid one-half of rent for November 2024 (\$2,375), \$3,525 towards
15 shared cable and bundled automobile insurance, \$419.65 towards a Tonal membership
16 subscription, and paid \$1,120 towards Tonal exercise equipment. Wife states that, in total, she
17 provided approximately \$38,892.15 in financial assistance after separation, which included
18 payment of credit card balances, tax refund proceeds, housing costs, insurance, and other shared
19 expenses. Wife states that when Husband filed his Request for Order in December 2025, she was
20 earning more than what she earned during the marriage. However, Wife states that effective June
21 2026, her compensation was reduced by 20% and she is currently on administrative leave from
22 patient care while employment-related proceedings remain pending. Wife states, "I have not
23 received a final determination regarding my employment status or future compensation and am
24 presently unable to pursue alternative employment while those proceedings remain pending.
25 Going forward, my earnings are expected to be approximately \$6,800 net per pay period based on
26 my current 0.8 FTE compensation, although that income is also subject to change depending on
27 the outcome of the pending proceedings. Accordingly, the income reflected in my current Income
28 and Expense Declaration may not accurately reflect my earnings or earning capacity at the time
29 of the hearing." Furthermore, Wife states that Husband was controlling and abusive. Wife states

Husband threatened to kill both of them while they were driving in Hawaii and when she later suffered serious injuries in a hit-and-run accident that left Wife unable to walk or work for three months, Husband blamed Wife for getting herself hit by a car. Wife also states Husband monitored her electronic devices, listened to her therapy sessions, and blamed her therapist for the deterioration of their relationship. Wife states Husband's behavior made her fear for her safety and she had a "go bag" and a safe word that she established with her family and friends in the event she needed immediate assistance. Finally, Wife states she moved out of the parties' shared apartment in November 2024 and she paid the November rent and removed herself from the lease. Wife states their landlord agreed to forgive rent owed for August through December if Husband vacated the property by February 18. Therefore, there is no outstanding rent obligation for her to pay.

4) On 7/29/2026, Wife filed an Income and Expense Declaration. Wife states she is 40 years old and has a B.S. and an M.D. Wife currently works as a physician. Wife did not attach any paystubs to her Income and Expense Declaration and reports that she earned \$171,583 in year-to-date income as of 6/30/2026 and earned \$23,666 in June 2026. Wife states her monthly expenses total \$16,175, which includes \$3,743 in payments towards debts. Wife reports owing \$60,644 in credit card debt. Wife also owes \$35,900 for a car loan, and \$42,071 in student loans. Wife states that she has \$4,600 in cash, \$0 in investments, and \$150,000 in retirement accounts.

5) On 8/4/2026, Husband filed a Supplemental Declaration. Husband states his business involves educating Medicare beneficiaries regarding available coverage and assisting with appropriate enrollments. Husband also states he works with federal employees and retirees by educating them regarding retirement and employment benefits. Husband states, "This work is relationship-driven and requires substantial activity before income is generated. Developing a client may involve prospecting, educational seminars, presentations, consultations, and multiple follow-up appointments over several weeks. Rebuilding sustainable insurance income therefore requires consistent blocks of time to develop and maintain a pipeline of prospective clients." Husband states he has had to drive for Lyft to generate immediate income for transportation, food, telephone service, and other necessities, and the time he spends driving for Lyft means he has less time to perform seminars, presentations, client meetings, consultations, and follow-up that can

1 restore his earning capacity. Husband writes, “Temporary spousal support would allow me to
2 secure modest housing and meet basic living expenses while reducing the extraordinary amount
3 of time I must devote to generating immediate rideshare income. I could then redirect meaningful
4 working hours toward the professional activities that have already demonstrated the ability to
5 produce insurance business.”

- 6 6) On 8/4/2026, Husband filed an Income and Expense Declaration. Husband states he is 41 years
7 old. He completed 3 years of college and has a professional / occupational license in “insurance
8 (Life & Health).” Husband states he is a self-employed insurance agency owner. Husband states
9 he lost the insurance contracts that previously generated his primary income. Husband states he
10 closed one insurance sale last month but he is unable to consistently work on his insurance
11 business because he relies primarily on Lyft for living expenses. Husband states he earned \$4,264
12 last month (driving for Lyft) plus \$1,248 in “commissions or bonuses” (Husband did not attach
13 documentation explaining what this income is; the Court assumes this may be for the insurance
14 sale he reports having closed last month). Husband states he has \$86 in cash savings and \$0 in
15 other assets. Husband states his monthly expenses total \$6,602 per month. Husband states he
16 owes \$950 in credit card debt, \$5,000 for a loan, \$1,751 for a “damage claim,” and \$49,670 for
17 two used car loans. Husband attached documents showing that he receives CalFresh benefits.
- 18 7) On 8/4/2026, Wife filed a Statement of Support Calculations. Wife states the Court should order
19 retroactive temporary spousal support no earlier than 5/10/2026 because that is the date upon
20 which Husband served his Petition for Dissolution. Wife’s proposed support calculation (which
21 shows spousal support owed of \$4,233 per month) does not appear to be based upon figures set
22 forth in Husband’s Income and Expense Declaration filed 8/4/2026.
- 23 8) On 8/6/2026, Husband submitted a Reply Declaration for filing and then submitted an Amended
24 Reply Declaration for filing on 8/8/2026.

25 **B. Findings and Order**

- 26 1) In light of the substantial sums Wife has paid toward community debts and Husband’s expenses
27 since the parties’ separation, Husband’s request for retroactive temporary spousal support is
28 denied. However, the Court’s jurisdiction to determine the exact amount Wife has paid towards
29 community debts and Husband’s expenses since the parties’ separation is reserved for trial.

- 1 2) Effective 8/1/2026, in accordance with the XSpouse calculation attached hereto and incorporated
2 herein, Wife shall pay Husband \$3,874 per month in temporary spousal support. One-half shall be
3 due and payable by the 1st and one-half shall be due and payable by the 15th of each month.
- 4 3) Temporary spousal support for August 2026 is due in full no later than 8/15/2026.
- 5 4) Wife shall make temporary spousal support payments for a period of 6 months. Wife's last
6 temporary spousal support payment to Husband shall be in January 2027. The Court limits the
7 temporary spousal support award to six months because the marriage was of short duration;
8 Husband appears to be earning below his earning capacity; and Husband did not refute Wife's
9 claims that she paid substantial sums toward the parties' expenses following separation. In
10 addition, it is presently unclear whether the parties' community debts exceed their community
11 assets and whether Wife will ultimately be entitled to reimbursement for community debts she
12 has paid following separation. The Court is therefore reluctant to award temporary spousal
13 support beyond six months when the final accounting may result in Husband owing Wife for his
14 share of community debts. The Court's jurisdiction to order reimbursement for community debt
15 payments paid by Wife after date of separation is reserved. In limiting temporary spousal support
16 to a six month period, the Court is not foreclosing the possibility of an award of post-Judgment
17 spousal support to Husband. The Court's jurisdiction to determine post-Judgment spousal support
18 is reserved.
- 19 5) The temporary spousal support award set forth above is modifiable upon a showing of a material
20 change in circumstances.
- 21 6) As Husband did not refute Wife's statement that no additional rent is owed to the landlord for the
22 parties' former shared apartment, Husband's request that Wife pay \$11,875 for rent for August
23 through December 2025 is denied.
- 24 7) The XSpouse inputs are based on the following:
- 25 a. Wife reports earning \$23,666 in gross per month.
- 26 b. Husband reported earning \$4,264 in Lyft income and \$1,248 (in what the Court assumes
27 was from his business) last month, for a total of \$5,512 in reported income last month.
- 28 8) The Court will prepare the Findings and Order After Hearing.
- 29

Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	19048	19048
Filing status	MFS->	<-MFS	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	1 *	Nets(adjusted)	Husband		
Wages+salary	0	23666	Husband 4161	Payment cost/benefit	3874	3874
Self-employed income	5512	0	Wife 14886	Net spendable income	8035	8035
Other taxable income	0	0	Total 19048	Change from guideline	0	0
TANF+CS received	0	0	Support	% of combined spendable	42%	42%
Other nontaxable income	0	0	Addons 0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS 0	Total taxes	1351	1351
401(k) employee contrib	0	0	S.Clara SS 3874	Dep. exemption value	0	0
Adjustments to income	0	0	Total 3874	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-	Net wage paycheck	0	0
CS paid prev marriage	0	0		Wife		
Health insurance	0	0		Payment cost/benefit	-3874	-3874
Other medical expense	0	0		Net spendable income	11013	11013
Property tax expense	0	0		Change from guideline	0	0
Ded interest expense	0	0	Proposed	% of combined spendable	58%	58%
Charitable contributions	0	0	Tactic 9	% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS 0	Total taxes	8780	8780
Qual bus income ded	0	0	SS 3874	Dep. exemption value	0	0
Required union dues	0	0	Total 3874	# withholding allowances	0	0
Mandatory retirement	0	0		Net wage paycheck	14554	14554
Hardship deduction	0 *	0 *	Saving 0			
Other GDL deductions	0	0	Releases 0			
Child care expenses	0	0				

Wife pays Guideline SS, Proposed SS